
Central Valley Regional Water Quality Control Board

22 June 2015

John W. Donlevy, Jr., City Manager
City of Winters
318 First Street
Winters, CA 95694

CERTIFIED MAIL
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REVISED NOTICE OF APPLICABILITY

WATER QUALITY ORDER 2014-0090-DWQ, GENERAL WASTE DISCHARGE REQUIREMENTS FOR RECYCLED WATER USE, CITY OF WINTERS WATER RECYCLING PROGRAM, YOLO COUNTY

On 16 July 2014, a Notice of Applicability (NOA) was issued to the City of Winters (City) for a temporary water recycling project to provide disinfected secondary-23 treated wastewater for irrigation of a plum orchard adjacent to the City's Wastewater Treatment Facility (WWTF). The City was assigned WQO 2014-0090-0001 for this discharge. Per conditions of the 2014 NOA, the City was required to cease the use of recycled water by 31 December 2014 or submit evidence that the State Water Resources Control Board Division of Drinking Water (DDW) has approved an amended Title 22 Engineering Report. On 8 April 2015, the City submitted a Notice of Intent (NOI) to obtain coverage under Water Quality Order 2014-0090-DWQ, *General Waste Discharge Requirements for Recycled Water Use* (hereafter, General Order) for continued operation of their temporary water recycling project for irrigation on lands adjacent to the City's WWTF. The City is proposing that the water recycling project be permanent.

A draft Title 22 Engineering Report dated March 2015 was submitted to DDW for review. A final draft Title 22 Engineering Report was submitted on May 2015. DDW's 29 May 2015 letter stated that once the "As-Built" plans have been submitted for review, DDW has no specific recommendations for inclusion in the waste discharge requirements for the project as defined. If the Use Areas are expanded and other agricultural water wells are incorporated into the expanded recycled water irrigation system, an amended Title 22 Engineering Report must be submitted for review and approval by DDW.

On 3 June 2014, the State Water Resources Control Board adopted the General Order, to regulate the use of recycled water for all Title 22 uses except groundwater recharge. In addition, the General Order delegates the responsibility of administering water recycling programs to a designated Administrator to the fullest extent possible. Based on the information provided in the NOI, the City's Recycled Water Program to continue irrigating the land adjacent to the City's WWTF satisfies the general and specific conditions of the General Order. This serves as formal notice that WQO 2014-0090-DWQ is applicable to the site and discharge

described below. The City of Winters will act as the Administrator of the Recycled Water Program. The City will remain assigned to WQO 2014-0090-0001 for this discharge. Please include this number on all correspondence related to this discharge.

WASTEWATER TREATMENT FACILITY

The WWTF is located northwest of the city at County Road 88 and County Road 32A in Yolo County. The WWTF provides secondary treatment with chlorine disinfection, where effluent is treated to a disinfected secondary-23 level. Waste Discharge Requirements (WDRs) R5-2002-0136 prescribes requirements for the discharge of treated domestic wastewater to approximately 170 acres of city owned spray fields vegetated with native grasses.

RECYCLED WATER PROGRAM

The City's Recycled Water Program will provide disinfected secondary-23 water for irrigation use on a plum orchard (Use Area) west of the City's WWTF, as shown on Attachment A. A drip irrigation system will be used.

The City, as the Administrator, will be responsible for the administration of the Recycled Water Program authorized pursuant to this General Order, including the requirements of Title 22. The City is the recycled water producer and distributor and is responsible for all permit requirements related to the production and distribution of recycled water. The City will convey recycled water to the Use Area and work with the agricultural operators during the period of the irrigation operations to ensure responsible operation and prohibit any cross-connection contamination. The agricultural operators will be subject to a contractual agreement for service with the City, and will operate the individual farming operations and their associated recycled water irrigation system including necessary noticing, self-monitoring, reporting, and emergency response as part of the terms of the service agreement entered between the City and the agricultural operator.

WATER RECYCLING USE AREA REQUIREMENTS

1. Application of recycled water shall be confined to the Use Area as defined in this NOA.
2. The production, distribution, and use of recycled water shall conform to an Engineering Report prepared pursuant to Title 22, section 60323 and approved by the Division of Drinking Water.
3. The use of recycled water shall not cause pollution or nuisance, as defined by Water Code section 13050.
4. Irrigation with recycled water shall occur only when appropriately trained personnel are on duty.
5. The recycled water shall be at least disinfected secondary-23 water as defined by Title 22, section 60301.
6. Recycled water shall be used in compliance with Title 22, section 60304(c). Regarding particular agricultural uses, recycled water shall be applied in compliance with the following:
 - a. Undisinfected secondary recycled water shall not be discharged to orchard or vineyard crops.

- b. No recycled water used for irrigation, or soil that has been irrigated with recycled water, shall come into contact with the edible portion of food crops that may be eaten raw by humans;
 - c. Non food-bearing trees, seed crops not eaten by humans, food crops that must undergo commercial pathogen-destroying processing before being consumed by humans, and ornamental nursery stock and sod farms (provided no irrigation with recycled water occurs for a period of 14 days prior to harvesting, retail sale, or allowing access by the general public) may be irrigated with recycled water;
- 7. The following setback distance from the Use Area shall be maintained:
 - a. 100-foot setback of irrigation from any domestic well, residential structures, or a place where public exposure could be similar to that of a park, playground, or school yard.
 - b. 25-foot setback from property lines.
 - c. 25-foot setback from public roads.
 - d. 25-foot setback from drainage courses.
 - 8. No physical connection shall exist between recycled water piping and any domestic water supply, domestic well or existing potable water systems.
 - 9. Public contact with recycled water shall be controlled using signs and/or other appropriate means on all properties and pipes.
 - 10. Application of recycled water shall be limited to agronomic rates of the crop.
 - 11. The Use Area shall be managed to prevent breeding of mosquitos including no standing water 48 hours after irrigation.
 - 12. The City shall promptly provide notification of any recycled water spills or unauthorized uses.

RECYCLED WATER USE AREA MONITORING AND REPORTING REQUIREMENTS

Requirements for monitoring the recycled water system shall be in accordance with the General Order's Monitoring and Reporting Program. Disinfection system monitoring shall be conducted on a weekly basis and all monitoring results shall be reported in the annual monitoring report. In addition, site inspection reports and monitoring reports as required in the City's Recycled Water Program shall be included in the annual monitoring report. The first monitoring report is due on **1 February 2016** and is to cover the 2015 irrigation season.

DISCHARGE REQUIREMENTS

- 1. The discharge of recycled water in a manner different from that described in the NOI is prohibited.
- 2. The discharge of recycled water to wetlands, surface waters, surface water drainage courses, or biologically sensitive areas, is prohibited.

GENERAL INFORMATION AND REQUIREMENTS

The City shall comply with the Specifications, Water Recycling Administration Requirements, and General Provisions of the General Order.

Please review this Notice of Applicability (NOA) carefully to ensure that it completely and accurately reflects the proposed Recycled Water Program. If the discharge violates the terms or conditions, the Central Valley Water Quality Control Board may take enforcement action, including the assessment of an administrative civil liability. Failure to abide by the conditions of the General Order, including its monitoring and reporting requirements, and this letter authorizing applicability could result in enforcement actions, as authorized by provisions of the California Water Code.

The required annual fee specified in the annual billing from the State Water Board shall be paid until this NOA is officially terminated. The City must submit in writing a Notice of Termination following completion or cessation of the discharge.

DOCUMENT SUBMITTALS

All monitoring reports and other correspondence should be converted to searchable Portable Document Format (PDF) and submitted electronically. Documents that are less than 50 MB should be emailed to:

centralvalleysacramento@waterboards.ca.gov.

To ensure that your submittal is routed to the appropriate staff person, the following information should be included in the body of the email or any documentation submitted to the mailing address for this office:

Facility Name: City of Winters, Yolo County		
Program: Non-15 Compliance	Order: WQO-2014-0090-0001	CIWQS Place ID: 807814

Documents that are 50 MB or larger should be transferred to a CD, DVD, or flash drive and mailed to:

Central Valley Regional Water Quality Control Board
ECM Mailroom
11020 Sun Center Drive, Suite 200
Rancho Cordova, CA 95670

Now that the Notice of Applicability has been issued, the Board's Compliance and Enforcement section will take over management of your case. Brendan Kenny is your point of contact for any questions about the General Order. If you find it necessary to make a change to your permitted operations, Brendan will direct you to the appropriate Permitting staff. You may contact Brendan at (916) 464-4635 or at bkenny@waterboards.ca.gov.


For PAMELA C. CREEDON
Executive Officer

Enclosure and cc's: See next page

Encl: Attachment A
Statewide General Waste Discharge Requirements for Recycled Water Use,
Water Quality Order 2014-0090-DWQ

Cc w/o encl: Annalisa Kihara, State Water Resources Control Board, Sacramento
Yolo County Environmental Health Division, Woodland
Richard Hinrichs, Division of Drinking Water, Redding
Ali Rezvani, Division of Drinking Water, Sacramento
Carol Scianna, City of Winters, Woodland
Kris Olof, Tully & Young, Sacramento